

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**202300575016CUEI: Shehyn vs. Public Works
08/31/2026 in Department 42
Motion for Leave to Amend Answer to Complaint**

Tentative Ruling:

The Court's power to grant leave to amend an answer is well-established and liberally applied. (See Code Civ. Proc., § 473, subd. (a)(1) ["The court may, in the furtherance of justice, and upon such terms as may be proper, allow a party to amend any pleadings"]. "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)

Defendants County of Ventura and Ventura County Waterworks District No. 1 move for leave to amend their answer to include affirmative defenses to their recent discovery that Plaintiff's claims date back many years. Plaintiff argues Defendants should have known that his claims spanned decades because he produced some photographs in discovery that could be interpreted to suggest he was claiming damages from injuries many years ago.

Plaintiff's complaint alleges that his claims arose as of 2022 and no earlier. Plaintiff's production of photographs about injuries suffered earlier does not establish that Plaintiff's claim was somehow different from what was alleged in his complaint. The photographs could have been interpreted as mere context as opposed to evidence of damages claimed in this lawsuit. The Court finds that Defendants acted with reasonable diligence in seeking leave to amend.

Plaintiff argues he will be prejudiced by an amended answer because the trial is set for October 2026 and he needs to take additional discovery. Plaintiff fails to identify the discovery that is needed to address the amended answer. Without that information, the Court has no way to assess prejudice to Plaintiff, if any.

The motion is granted.